Pfizer Inc. et al v. Zenara Pharma Private Limited

Plaintiff:	Wyeth LLC, PF PRISM IMB B.V., FoldRx Pharmaceuticals, LLC and Pfizer Inc.
Defendant:	Zenara Pharma Private Limited
Case Number:	1:2026cv01402
Filed:	October 29, 2026
Court:	U.S. District Court for the District of Delaware
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

ate Filed	Document Text
October 30, 2026	**Filing 6** Summons Issued as to Zenara Pharma Private Limited on 10/30/2026. (aas)
October 29, 2026	**Filing 5** Disclosure Statement pursuant to Rule 7.1: identifying Corporate Parent Pfizer Inc. for FoldRx Pharmaceuticals, LLC, PF PRISM IMB B.V., Wyeth LLC filed by FoldRx Pharmaceuticals, LLC, PF PRISM IMB B.V., Pfizer Inc., Wyeth LLC. (aas)
October 29, 2026	**Filing 4** Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 9,770,441 B2. (aas)
October 29, 2026	**Filing 3** Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: September 15, 2026. Date of Expiration of Patent: August 31, 2035.Thirty Month Stay Deadline: 3/15/2029. (aas)
October 29, 2026	**Filing 2** Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (aas)
October 29, 2026	**Filing 1** COMPLAINT against Zenara Pharma Private Limited (Filing fee $ 405, receipt number ADEDC-5101310) - filed by PF PRISM IMB B.V., FoldRx Pharmaceuticals, LLC, Wyeth LLC, Pfizer Inc.. (Attachments: #1 Exhibit A, #2 Civil Cover Sheet)(aas)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Pfizer Inc. (Delaware); FoldRx Pharmaceuticals, LLC (Delaware); PF Prism Imb BV. (Netherlands); and Wyeth LLC (Delaware)
  - Defendant: Zenara Pharma Private Limited (India)
  - Plaintiff's Counsel: Morris, Nichols, Arsht & Tunnell LLP
- Case Identification: 1:26-cv-01402, D. Del., 10/29/2026
- Venue Allegations: Venue is asserted on the basis that the Defendant, a foreign corporation, is subject to personal jurisdiction in the District of Delaware due to its business activities, including the sale of other generic drugs in the state and its regular participation in patent litigation within the district.
- Core Dispute: Plaintiff alleges that Defendant's filing of an Abbreviated New Drug Application (ANDA) for a generic version of the drug Vyndamax® constitutes an act of infringement of a patent covering specific crystalline forms of the active ingredient, tafamidis.
- Technical Context: The technology concerns specific crystalline solid forms, or polymorphs, of a pharmaceutical compound, which are distinct solid-state structures that can significantly affect a drug's stability, bioavailability, and manufacturability.
- Key Procedural History: This lawsuit was filed under the Hatch-Waxman Act, a statutory framework governing generic drug approvals. The action was triggered by Defendant's "Notice Letter" of September 14, 2026, which included a Paragraph IV certification asserting that its generic product would not infringe Plaintiff's patent or that the patent is invalid. The filing of the complaint within 45 days of this notice imposes an automatic 30-month stay on the FDA's approval of the Defendant's ANDA.

Case Timeline

Date	Event
2014-09-08	'441 Patent Priority Date
2017-09-26	'441 Patent Issue Date
2026-09-14	Defendant sent Paragraph IV Notice Letter to Plaintiff
2026-10-29	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 9,770,441 - "CRYSTALLINE SOLID FORMS OF 6-CARBOXY-2-(3,5-DICHLOROPHENYL)-BENZOXAZOLE"

- Patent Identification: U.S. Patent No. 9,770,441 ("the '441 Patent"), *"CRYSTALLINE SOLID FORMS OF 6-CARBOXY-2-(3,5-DICHLOROPHENYL)-BENZOXAZOLE,"* issued September 26, 2017.

The Invention Explained

- Problem Addressed: The patent's background explains that for a pharmaceutical compound to be viable, its solid form must be consistent and stable. Different solid forms (e.g., polymorphs, amorphous solids) of the same chemical compound can have different physical properties, such as solubility and stability, which can impact the safety, efficacy, and manufacturability of a drug product. '441 Patent, col. 1:48-54
- The Patented Solution: The invention claims to solve this problem by identifying and characterizing specific, stable crystalline forms of the compound 6-carboxy-2-(3,5-dichlorophenyl)-benzoxazole, the active ingredient known as tafamidis. '441 Patent, abstract These distinct forms are defined by specific analytical fingerprints, such as characteristic peaks in a powder X-ray diffraction (PXRD) pattern, chemical shifts in a solid-state NMR spectrum, or peaks in a Raman spectrum. '441 Patent, col. 2:7-14
- Technical Importance: By defining and claiming specific crystalline forms, the invention provides a basis for reliably manufacturing a drug substance with consistent, predictable physical properties, which is a critical requirement for regulatory approval and commercial-scale production. '441 Patent, col. 1:55-64

Key Claims at a Glance

- The complaint asserts infringement of claims 1-16, focusing on independent claim 1. Compl. ¶31
- The essential elements of asserted independent claim 1 are:
    - A crystalline form of 6-carboxy-2-(3,5-dichlorophenyl)-benzoxazole,
    - wherein said crystalline form has an analytical parameter selected from the group consisting of:
        - a solid state NMR spectrum comprising 13C chemical shifts (ppm) at 120.8±0.2 and 127.7±0.2,
        - a powder X-ray diffraction pattern comprising a peak at a diffraction angle (20) of 28.6±0.2, and
        - a Raman spectrum comprising a Raman shift peak (cm-1) at 1292±2.

- The complaint states that Plaintiffs may assert infringement of any of claims 1-16 of the '441 Patent. Compl. ¶31 Compl. ¶41

III. The Accused Instrumentality

Product Identification

- The accused instrumentality is Defendant Zenara's generic tafamidis 61 mg tablets, for which it seeks FDA approval via Abbreviated New Drug Application (ANDA) No. 221864 ("Zenara's ANDA Product"). Compl. ¶1 Compl. ¶2

Functionality and Market Context

- Zenara's ANDA Product contains tafamidis as its active ingredient and is intended to be a generic equivalent of Plaintiffs' branded drug, Vyndamax®. Compl. ¶18 Compl. ¶19 Vyndamax® is approved for the treatment of cardiomyopathy of wild-type or hereditary transthyretin-mediated amyloidosis. Compl. ¶17 The complaint alleges, upon information and belief, that the ANDA product is a pharmaceutical composition comprising a specific crystalline form of tafamidis. Compl. ¶34 Compl. ¶36

No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint alleges that Zenara's ANDA filing for its generic tafamidis product is an act of infringement under 35 U.S.C. § 271(e)(2)(A). Compl. ¶39 The core of the infringement allegation is that the crystalline form of tafamidis in Zenara's ANDA Product meets the limitations of Claim 1 of the '441 Patent.

'441 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A crystalline form of 6-carboxy-2-(3,5-dichlorophenyl)-benzoxazole...	Defendant's ANDA product is alleged to contain tafamidis, which is the chemical	¶33	col. 1:16-20

	compound 6-carboxy-2-(3,5-dichlorophenyl)-benzoxazole.		
...wherein said crystalline form has an analytical parameter selected from the group consisting of a solid state NMR spectrum comprising 13C chemical shifts (ppm) at 120.8±0.2 and 127.7±0.2, a powder X-ray diffraction pattern comprising a peak at a diffraction angle (20) of 28.6±0.2, and a Raman spectrum comprising a Raman shift peak (cm-1) at 1292±2.	On information and belief, the ANDA product is alleged to contain a crystalline form of tafamidis that exhibits at least one of the three analytical parameter options defined in this Markush group: an NMR spectrum with the specified shifts, a PXRD pattern with the specified peak, or a Raman spectrum with the specified peak.	¶34	col. 23:8-18

- Identified Points of Contention:
  - Factual Question: The central dispute will likely be factual: does the specific crystalline form of tafamidis used in Zenara's ANDA Product actually exhibit one of the analytical parameters claimed? The complaint is pled on "information and belief," suggesting Plaintiffs may not have definitive test data on Zenara's product. Compl. ¶34 The complaint notes that Zenara refused to provide product samples. Compl. ¶21 The outcome may depend entirely on the analytical data for Zenara's product that emerges during discovery.
  - Scope Question: A potential legal dispute may arise over the interpretation of the numerical ranges specified in the claim (e.g., "28.6±0.2"). The case could involve arguments over whether Zenara's product falls inside or outside these ranges and how to account for measurement variability inherent in the analytical techniques.

V. Key Claim Terms for Construction

- The Term: "a powder X-ray diffraction pattern comprising a peak at a diffraction angle (20) of 28.6±0.2" (and the analogous terms for NMR and Raman spectra).
- Context and Importance: The construction of this term, specifically the scope of the "±0.2" tolerance, is critical to determining infringement. The dispute will center on whether the analytical data from the accused product shows a peak that falls within this defined range.
- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader Interpretation: A party seeking a broader reading might point to the specification, which acknowledges inherent variability in these measurements: "For example, one skilled in the art will appreciate that the peak positions (20) will show some variability, typically as much as 0.1 to 0.2 degrees..." '441 Patent, col. 12:38-42 This could be used to argue that the "±0.2" range should be interpreted with some flexibility to capture routine experimental error.
    - Evidence for a Narrower Interpretation: A party seeking a narrower reading may argue that the patentee explicitly defined the precise boundary of the claim by choosing the "±0.2" range. They may contend that this specific numerical range, having been deliberately chosen and claimed, should be strictly enforced as the limit of the patent's scope, regardless of general statements about variability elsewhere in the specification.

VI. Other Allegations

- Indirect Infringement: The complaint alleges induced infringement, stating that Zenara's proposed product labeling will instruct and encourage physicians and patients to administer the generic drug for the treatment of transthyretin amyloid disease, thereby infringing method claims. Compl. ¶38 Compl. ¶43 Contributory infringement is also alleged on the basis that Zenara's product is not a staple article of commerce and is especially made for an infringing use. Compl. ¶44
- Willful Infringement: The complaint alleges willful infringement based on Zenara's knowledge of the '441 patent, as evidenced by its service of a Paragraph IV Notice Letter. Compl. ¶30 Compl. ¶47 Plaintiffs assert that Zenara proceeded without a reasonable basis for believing it would not be liable for infringement, which forms the basis for a request for enhanced damages and attorneys' fees. Compl. ¶47 Compl. Prayer (e)

VII. Analyst’s Conclusion: Key Questions for the Case

The resolution of this ANDA litigation will likely depend on the answers to two central questions:

1. A question of evidentiary proof: What do the actual analytical test results (PXRD, NMR, Raman) for Zenara's ANDA product show? Does this data, once produced in discovery, unequivocally demonstrate a crystalline form that meets the specific numerical limitations of at least one of the analytical parameters recited in Claim 1?
2. A question of claim scope: How will the court construe the numerical ranges and their associated "±" tolerances, such as "28.6±0.2"? The case may hinge on whether these ranges are interpreted as rigid, absolute boundaries or if their scope can be influenced by the patent’s own disclosures regarding inherent measurement variability.
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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

PFIZER INC., FOLDRX PHARMACEUTICALS, LLC, PF PRISM IMB B.V., AND WYETH LLC,	)	
Plaintiffs,	)	
v.	)	C.A. No._____
ZENARA PHARMA PRIVATE LIMITED,	)	
Defendant,	)	

COMPLAINT

Plaintiffs Pfizer Inc.; FoldRx Pharmaceuticals, LLC; PF PRISM IMB B.V.; and Wyeth LLC (referred to collectively herein as "Plaintiffs") file this Complaint for patent infringement against Zenara Pharma Private Limited ("Zenara"), and by their attorneys, hereby allege as follows:

1. This is an action for patent infringement under the patent laws of the United States, Title 35, United States Code, and for declaratory judgment of patent infringement under 28 U.S.C. §§ 2201 and 2202 and the patent laws of the United States, Title 35, United States Code, that arises out of Zenara's submission of an Abbreviated New Drug Application ("ANDA") to the U.S. Food and Drug Administration ("FDA") seeking approval to commercially manufacture, use, offer for sale, sell, and/or import an ANDA version of Vyndamax® (tafamidis) 61 mg tablets prior to the expiration of U.S. Patent No. 9,770,441 ("the '441 patent") (attached as Exhibit A).

2. Zenara notified Pfizer by letter dated September 14, 2026 ("Zenara's Notice Letter") that it has submitted to the FDA ANDA No. 221864 ("Zenara's ANDA"), seeking approval from the FDA to engage in the commercial manufacture, use, offer for sale, sale and/or importation of generic tafamidis 61 mg tablets ("Zenara's ANDA Product") prior to the expiration of the '441 patent.

PARTIES

3. Plaintiff Pfizer Inc. is a corporation organized and existing under the laws of the State of Delaware and having a place of business at 66 Hudson Boulevard East, New York, NY 10001.

4. Plaintiff FoldRx Pharmaceuticals, LLC is a limited liability company organized and existing under the laws of the State of Delaware, with a place of business at 66 Hudson Boulevard East, New York, NY 10001. FoldRx Pharmaceuticals, LLC is the holder of New Drug Application ("NDA") No. 212161 for the manufacture and sale of tafamidis 61 mg capsules, which has been approved by the FDA. FoldRx Pharmaceuticals, LLC is a wholly owned subsidiary of Pfizer Inc.

5. Plaintiff PF PRISM IMB B.V. is a private limited company (*besloten venootschap*) organized under the law of the Netherlands, having its registered seat in Rotterdam, the Netherlands, and having its business address at Rivium Westlaan 142, 2909 LD, Cepelle aan den IJessel, the Netherlands.

6. Plaintiff Wyeth LLC is a limited liability company organized and existing under the laws of the State of Delaware with offices at 66 Hudson Boulevard East, New York, NY 10001.

7. Upon information and belief, Defendant Zenara is a corporation organized and existing under the laws of India, with a place of business at Plot 83/B, 84, and 87-96, Phase III, IDA, Cherlapally, Hyderabad, 500051, India. Upon information and belief, Zenara is in the business of, among other things, manufacturing and selling generic versions of branded pharmaceutical drugs.

8. Upon information and belief, Zenara knows and intends that upon approval of Zenara's ANDA, Zenara will manufacture and directly or indirectly market, sell, and distribute Zenara's ANDA Product throughout the United States, including in Delaware.

JURISDICTION AND VENUE

9. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201 and 2202.

10. Zenara is subject to personal jurisdiction in Delaware because, among other things, Zenara has purposely availed itself of the benefits and protections of Delaware's laws such that it should reasonably anticipate being haled into court here. Upon information and belief, Zenara Inc., itself and through its agents develops, manufactures, imports, markets, offers to sell, and/or sells generic drugs throughout the United States, including in the State of Delaware, and therefore transacts business within the State of Delaware related to Plaintiffs' claims, and/or has engaged in continuous and systematic business contacts within the State of Delaware.

11. Upon information and belief, if Zenara's ANDA is approved, Zenara will directly or indirectly manufacture, market, sell, and/or distribute Zenara's ANDA Product within the United States, including in Delaware, consistent with Zenara's practices for the marketing and distribution of other generic pharmaceutical products. Upon information and belief, Zenara regularly does business in Delaware, and its practices with other generic products have involved placing those products into the stream of commerce for distribution throughout the United States, including in Delaware. Upon information and belief, Zenara's generic pharmaceutical products are used and/or consumed within and throughout the United States, including in Delaware. Upon information and belief, Zenara's ANDA Product will be prescribed by physicians practicing in Delaware, dispensed by pharmacies located within Delaware, and used by patients in Delaware. Each of the activities would have a

substantial effect within Delaware and would constitute infringement of the ’441 patent in the event that Zenara’s ANDA Product is approved before the ’441 patent expires.

12. Upon information and belief, Zenara derives substantial revenue from generic pharmaceutical products that are used and/or consumed within Delaware, and that are manufactured by Zenara and/or for which Zenara is the named applicant on approved ANDAs. Upon information and belief, various products for which Zenara is the named applicant on approved ANDAs are available at retail pharmacies in Delaware.

13. In addition, this Court has personal jurisdiction over Zenara because Zenara regularly engages in patent litigation concerning FDA-approved branded drug products in this district, does not contest personal jurisdiction in this district, and purposefully availed itself of the rights and benefits of this Court by asserting claims and/or counterclaims in this Court. See, e.g., *Mirum Pharmaceuticals, Inc. et al. v. Zenara Pharma Private Limited et al.*, C.A. No. 26-1154-JLH, D.I. 12 (D. Del. Sept. 28, 2026); *MyoKardia, Inc. et al. v. Zenara Pharma Private Limited et al.*, C.A. No. 26-857-JLH, D.I. 11 (D. Del. Oct. 13, 2026); *Astellas Pharma Inc. et al. v. Cipla Limited et al.*, C.A. No. 24-1333-GBW, D.I. 32 (D. Del. Feb. 25, 2025).

14. Alternatively, the Court may exercise personal jurisdiction over Zenara pursuant to Fed. R. Civ. P. 4(k)(2) because: (a) Plaintiffs’ claims arise under federal law; (b) Zenara would be a foreign defendant not subject to personal jurisdiction in the courts of any State; and (c) Zenara has sufficient contacts with the United States as a whole, including but not limited to filing an ANDA with the FDA and manufacturing and selling generic pharmaceutical products that are distributed throughout the United States, such that the Court’s exercise of jurisdiction over Zenara satisfies due process.

15. Venue is proper in this district as to Zenara pursuant to 28 U.S.C. § 1391 because, *inter alia*, Zenara is a corporation organized and existing under the laws of India and is subject to personal jurisdiction in this judicial district.

FACTUAL BACKGROUND

16. Plaintiff FoldRx Pharmaceuticals, LLC, is the holder of New Drug Application No. 212161 for Vyndamax®, which has been approved by the FDA.

17. Vyndamax® is approved for the treatment of cardiomyopathy of wild-type or hereditary transthyretin-mediated amyloidosis in adults to reduce cardiovascular mortality and cardiovascular-related hospitalization.

18. Vyndamax® contains tafamidis as its active ingredient.

19. Zenara’s ANDA Product is an ANDA version of Vyndamax®.

20. Zenara’s Notice Letter purported to include an “Offer of Confidential Access” to Plaintiffs to portions of Zenara’s ANDA. The offer, however, was subject to various unreasonably restrictive conditions.

21. In an exchange of correspondence, counsel for Pfizer and counsel for Zenara negotiated the terms of Zenara’s Offer of Confidential Access. The parties did not agree on terms under which Pfizer could review, among other things, the Drug Master File referenced in

Zenara's ANDA or relevant characterization data. Zenara further refused to produce samples of Zenara's ANDA Product.

22. Plaintiffs are filing this Complaint within forty-five days of receipt of Zenara's Notice Letter.

COUNT I – INFRINGEMENT OF THE '441 PATENT

23. Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

24. The '441 patent, titled "CRYSTALLINE SOLID FORMS OF 6-CARBOXY-2(3,5-DICHLOROPHENYL)-BENZOXAZOLE", was duly and legally issued on September 26, 2017.

25. The inventors named on the '441 patent are Kevin Paul Girard, Andrew J. Jensen, and Kris Nicole Jones.

26. Pfizer Inc. is the assignee of the '441 patent.

27. Plaintiffs together own all substantial rights in the '441 patent.

28. Vyndamax® and its use are covered by one or more of claims 1–16 of the '441 patent, and the '441 patent has been listed in *Approved Drug Products with Therapeutic Equivalence Evaluations* ("the Orange Book") in connection with Vyndamax®.

29. In Zenara's Notice Letter, Zenara notified Plaintiffs of the submission of Zenara's ANDA to the FDA. The purpose of this submission was to obtain, *inter alia*, approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale and/or importation of Zenara's ANDA Product prior to the expiration of the '441 patent.

30. In Zenara's Notice Letter, Zenara also notified Plaintiffs that, as part of its ANDA, Zenara had filed certifications of the type described in Section 505(j)(2)(B)(iv) of the FDCA, 21 U.S.C. § 355(j)(2)(B)(iv), with respect to the '441 patent. Zenara submitted its ANDA to the FDA containing certifications pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV) asserting that the '441 patent is invalid, unenforceable, and/or will not be infringed by the manufacture, use, offer for sale, sale, and/or importation of Zenara's ANDA Product.

31. Upon information and belief, Zenara's ANDA Product and the use of Zenara's ANDA Product (including in accordance with and as directed by Zenara's proposed labeling for Zenara's ANDA Product) are covered by one or more of claims 1–16 of the '441 patent.

32. For example, claim 1 of the '441 patent recites:

> A crystalline form of 6-carboxy-2-(3,5-dichlorophenyl)-benzoxazole, wherein said crystalline form has an analytical parameter selected from the group consisting of
>
> a solid state NMR spectrum comprising 13C chemical shifts (ppm) at 120.8$\pm$0.2 and 127.7$\pm$0.2,
>
> a powder X-ray diffraction pattern comprising a peak at a diffraction angle (2θ) of 28.6$\pm$0.2, and
>
> a Raman spectrum comprising a Raman shift peak (cm^{-1}) at 1292$\pm$2.

33. In Zenara's Notice Letter, Zenara states that its ANDA Product contains tafamidis, i.e., 6-carboxy-2-(3,5-dichlorophenyl)-benzoxazole.

34. On information and belief, Zenara's ANDA product contains a crystalline form of tafamidis that has a solid state NMR spectrum comprising 13C chemical shifts (ppm) at 120.8$ \pm$0.2 and 127.7$\pm$0.2, a powder X-ray diffraction pattern comprising a peak at a diffraction angle (2θ) of 28.6$\pm$0.2, or a Raman spectrum comprising a Raman shift peak (cm^{-1}) at 1292$\pm$2.

35. As another example, claim 15 of the '441 patent recites "[a] pharmaceutical composition comprising the crystalline form of claim 1 in a therapeutically effective amount in admixture with at least one pharmaceutically acceptable excipient."

36. On information and belief, Zenara's ANDA Product is a pharmaceutical composition comprising the crystalline form of claim 1 in a therapeutically effective amount in admixture with at least one pharmaceutically acceptable excipient.

37. As a further example, claim 16 of the '441 patent recites "[a] method of treating transthyretin amyloid disease in a mammal, the method comprising administering to the mammal a therapeutically effective amount of the crystalline form claim 1."

38. On information and belief, the proposed labeling for Zenara's ANDA Product directs and encourages a method of treating a transthyretin amyloid disease in a mammal, the method comprising administering to the mammal a therapeutically effective amount of the crystalline form claim 1.

39. Zenara's submission of Zenara's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Zenara's ANDA Product before the expiration of the '441 patent was an act of infringement of the '441 patent under 35 U.S.C. § 271(e)(2)(A).

40. Upon information and belief, Zenara will engage, directly or indirectly, in the manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Zenara's ANDA Product immediately and imminently upon approval of Zenara's ANDA.

41. Upon information and belief, the manufacture, use, sale, offer for sale, or importation of Zenara's ANDA Product would infringe one or more of claims 1–16 of the '441 patent.

42. Upon information and belief, the manufacture, use, sale, offer for sale, or importation of Zenara's ANDA Product in accordance with, and as directed by, its proposed product labeling would infringe one or more of claims 1–16 of the '441 patent.

43. Upon information and belief, Zenara plans and intends to, and will, actively induce infringement of the '441 patent when Zenara's ANDA is approved, and plans and intends to, and will, do so immediately and imminently upon approval. Zenara's activities will be done with knowledge of the '441 patent and specific intent to infringe that patent.

44. Upon information and belief, Zenara knows that Zenara's ANDA Product and its proposed labeling are especially made or adapted for use in infringing the '441 patent, that Zenara's ANDA Product is not a staple article or commodity of commerce, and that Zenara's ANDA Product and its proposed labeling are not suitable for substantial non-infringing use. Upon

information and belief, Zenara plans and intends to, and will, contribute to infringement of the ’441 patent immediately and imminently upon approval of Zenara’s ANDA.

45. Notwithstanding Zenara’s knowledge of the claims of the ’441 patent, Zenara has continued to assert its intent to manufacture, offer for sale, sell, distribute, and/or import Zenara’s ANDA Product with their product labeling following FDA approval of Zenara’s ANDA prior to the expiration of the ’441 patent.

46. The foregoing actions by Zenara constitute and/or will constitute infringement of the ’441 patent; active inducement of infringement of the ’441 patent; and contribution to the infringement by others of the ’441 patent.

47. Upon information and belief, Zenara has acted with full knowledge of the ’441 patent and without a reasonable basis for believing that it would not be liable for infringement of the ’441 patent; active inducement of infringement of the ’441 patent; and/or contribution to the infringement by others of the ’441 patent.

48. Plaintiffs will be substantially and irreparably damaged by infringement of the ’441 patent.

49. Unless Zenara is enjoined from infringing the ’441 patent, actively inducing infringement of the ’441 patent, and contributing to the infringement by others of the ’441 patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT II – DECLARATORY JUDGMENT OF INFRINGEMENT OF THE ’441 PATENT

50. Plaintiffs incorporate by reference each of the preceding paragraphs as if fully set forth herein.

51. The Court may declare the rights and legal relations of the parties pursuant to 28 U.S.C. §§ 2201 and 2202 because there is a case of actual controversy between Plaintiffs on one hand and Zenara on the other regarding Zenara’s infringement, active inducement of infringement, and contribution to the infringement by others of the ’441 patent, and/or the validity of the ’441 patent.

52. An actual case or controversy exists between Plaintiffs and Zenara with respect to Zenara’s liability for infringement of the ’441 patent.

53. The Court should declare that the commercial manufacture, use, sale, offer for sale or importation of Zenara’s ANDA Product will infringe, induce infringement, and actively contribute to the infringement of the ’441 patent.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs request the following relief:

(a) A judgment that the ’441 patent has been infringed under 35 U.S.C. § 271(e)(2) by Zenara’s submission to the FDA of Zenara’s ANDA;

(b) A judgment ordering that the effective date of any FDA approval of commercial manufacture, use, offer for sale, sale or importation of Zenara’s ANDA Product, or any other drug product that infringes or the use of which infringes the ’441 patent, be not earlier than the expiration dates of said patent, inclusive of any extension(s) and additional period(s) of exclusivity;

(c) A preliminary and permanent injunction enjoining Zenara, and all persons acting in concert with Zenara, from the commercial manufacture, use, sale, offer for sale, or importation in the United States of Zenara's ANDA Product, or any other drug product covered by or whose use is covered by the '441 patent prior to the expiration of said patent, inclusive of any extension(s) and additional period(s) of exclusivity;

(d) A judgment declaring that the commercial manufacture, use, sale, offer for sale, or importation of Zenara's ANDA Product, or any other drug product covered by or whose use is covered by the '441 patent, prior to the expiration of said patent, will infringe, induce the infringement of, and contribute to the infringement by others of said patent;

(e) A declaration that this is an exceptional case and an award of attorneys' fees pursuant to 35 U.S.C. § 285;

(f) Costs and expenses in this action; and

(g) Such further relief and other relief as this Court may deem just and proper.

MORRIS, NICHOLS, ARSHT & TUNNEL LLP

/s/Megan E. Dellinger

OF COUNSEL:

Thomas H.L. Selby
Stanley E. Fisher
Christopher J. Mandernach
Andrew L. Hoffman
Ayelet Evrony
Rhochelle Krawetz
Daniel P. Schneider
WILLIAMS & CONNOLLY LLP
680 Maine Avenue SW
Washington, DC 20024
(202) 434-5000

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Jeremy A. Tigan (#5239)
Megan E. Dellinger (#5739)
1201 North Market Street
P.O. Box 1347
Wilmington, DE 19899
(302) 658-9200
jtigan@morrisnichols.com
mdellinger@morrisnichols.com

Attorneys for Plaintiffs